

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF GEORGIA
GAINESVILLE DIVISION

CHRISTOPHER J. CARRELHA and KELSEY
D. CARRELHA,

Plaintiffs,

v.

MEB LOAN TRUST VIII, et al.,

Defendants.

CIVIL ACTION FILE

NO. 2:26-cv-00110-RWS-AWH

Judge Richard W. Story

Magistrate Judge Anna W. Howard

MOTION FOR LEAVE TO FILE A CORRECTED AMENDED
COMPLAINT

ATTORNEY REVIEW NOTICE — READ BEFORE ANYTHING ELSE

This is a draft prepared for attorney review. **It has not been filed, served or sent, and it must not be until the docket has been read.**

Whether an amended complaint was filed by the August 21, 2026 deadline set by Doc. 35, and what it contains, is unknown to everyone who prepared this. That one fact determines whether this motion is the right instrument. Section II sets out what to file instead in each of the other situations.

The blanks must be completed from the docket — the service list above in particular. A certificate of service naming the wrong counsel proves nothing.

What has changed since the first draft of this package. Three things, all from reading primary sources rather than the materials that cite them.

The two citation defects identified earlier **did not reach the pleading**. The sixteen-count amended complaint contains no reference to *Racette*, to Fannie Mae, to any REMIC Trust 2024-91, and pleads no void-assignment attack. Its paragraph 3 was drafted *around Ames*, not into it. One narrower clause in that paragraph still needs correcting, and Section IV says exactly which words.

Two defects that **are** in the pleading were found instead, and they matter more: a cross-reference in paragraph 3 that points at the wrong counts, and one count that incorporates the substantive facts of four other counts — which is the very thing paragraph 2 represents to the Court that the pleading does not do, and the very thing Doc. 35 ordered cured.

And this document is now in 14-point Times New Roman. The first draft was produced in 13-point, which N.D. Ga. LR 5.1 does not permit.

I. RELIEF REQUESTED

Plaintiffs respectfully move, under Federal Rule of Civil Procedure 15(a)(2), for leave to file a Corrected Amended Complaint conforming to the schedule of corrections set out in Section IV. The corrections are directed to compliance with

the Order of July 31, 2026 (Doc. 35), to two internal errors on the face of the operative pleading, and to two pleading requirements identified in further research.

Rule 15(a)(2) provides that "a party may amend its pleading only with the opposing party's written consent or the court's leave," and that "[t]he court should freely give leave when justice so requires."

II. WHAT TO FILE IF THE DOCKET SAYS SOMETHING DIFFERENT

If no amended complaint was filed. This motion is the right instrument, and it should be accompanied by a statement addressing excusable neglect under Rule 6(b)(1)(B), because the deadline has passed. That statement must be truthful about the reason, and the reason is not in this system's record.

If an amended complaint was filed and is compliant. File nothing on this footing. The corrections in Section IV are then candidates for a single short notice of correction, which is a smaller and more credible step.

If an amended complaint was filed carrying the defects in Section IV. Correct them promptly and on the filer's own initiative. A party that identifies its own defect is in a materially better position than one whose opponent finds it — and against *Vibe Micro, Inc. v. Shabanets*, 878 F.3d 1291, 1309 (11th Cir. 2018), a second non-compliant pleading is the one the Eleventh Circuit has said a district court need not endure.

If a motion to dismiss is already pending. The response deadline governs. Check whether a motion to stay discovery was filed alongside it. In the one verified

comparison available, *Caudell v. NewRez LLC*, No. 3:26-cv-00007 (M.D. Ga.), a discovery stay was imposed and remained until the motion was resolved by Doc. 17 on April 28, 2026 — an order granting the motion **in part**.

III. GROUNDS

A. No prejudice

No scheduling order has issued. No discovery has been taken. The motions to dismiss at Docs. 4 and 5 were denied as moot with leave to renew, so Defendants retain every defence they had. Under Doc. 35, Defendants have fourteen days from the filing of an amended complaint to respond, and that period is unaffected.

Rule 15(a)(3) would otherwise give a responding party the time remaining to respond to the original pleading or fourteen days after service of the amended pleading, whichever is later — but it applies "[u]nless the court orders otherwise," and Doc. 35 orders otherwise.

B. The corrections narrow the pleading; they do not expand it

Plaintiffs seek to add no claim and no party. Two of the corrections remove material. One replaces a cross-reference with the correct one. Two add the specific allegations that two counts require in order to be pleaded at all.

IV. SCHEDULE OF CORRECTIONS

Each item states the defect, the source that establishes it, and the correction. None rests on a characterisation; every one can be checked against the document.

Correction 1 — paragraph 3 cross-references the wrong counts

The defect. Paragraph 3 states that Plaintiffs plead certain counts in the alternative under Rule 8(d)(3), "including failure of consideration in the underlying obligation (Count X) and Security Deed unenforceability derivative of the underlying obligation (Count XI)."

The count headings in the same pleading read: **Count IX — Failure of Consideration, Nudum Pactum; Count X — Security Deed Unenforceability; Count XI — Georgia Fair Business Practices Act.** Paragraph 116, the legal basis for Count IX, confirms that failure of consideration is Count IX.

Paragraph 3 is therefore off by one. As written it directs the Court to the Security Deed count and the FBPA count for propositions belonging to the failure of consideration count and the Security Deed count.

The correction. In paragraph 3, replace "(Count X)" with "(Count IX)" and "(Count XI)" with "(Count X)".

Correction 2 — paragraph 3 attributes to Ames a carveout it does not contain

The defect. Paragraph 3 states that the pleaded theories "fall within the carveouts recognized in *Ames* or attack the enforceability of the underlying

obligation independent of any assignment."

The second branch of that disjunctive is correct and is what Counts IX and X actually do. The first branch is not. *Ames v. JP Morgan Chase Bank, N.A.*, 298 Ga. 732 (2016), recognises no carveouts. Every reference to a void assignment in that opinion appears in footnote 8, which surveys the decisions of *other* jurisdictions and expressly aligns Georgia with those holding that plaintiff debtors "always lack standing to challenge an assignment when they have failed to prove an injury from the assignment." Footnote 7 cites *Haynes v. McCalla Raymer, LLC*, 793 F.3d 1246, 1253 (11th Cir. 2015), which forecloses the nearest candidate for a carveout.

The correction. In paragraph 3, delete the words "fall within the carveouts recognized in *Ames* or", so that the sentence reads: "To the limited extent Plaintiffs raise assignment-related facts, the pleaded theories attack the enforceability of the underlying obligation independent of any assignment."

Nothing else in paragraph 3 changes. The paragraph's purpose — to tell the Court plainly that this pleading does not run at *Ames* — survives intact, and is better served by the sentence that remains.

Correction 3 — one count incorporates the substantive facts of four other counts

The defect. Paragraph 2 represents to the Court: "No Count in this pleading incorporates by reference 'each and every preceding paragraph'; each Count incorporates only specifically identified numbered paragraphs."

One count's incorporation clause reads: "incorporate ¶¶ 10, 48–53, **and the substantive facts of Counts VI, VIII, XII, and XIII.**"

That clause incorporates counts, not paragraphs. It contradicts paragraph 2's own representation, and it is the second category of shotgun pleading identified in *Weiland v. Palm Beach County Sheriff's Office*, 792 F.3d 1313 (11th Cir.

- — the defect Doc. 35 ordered cured.

The correction. Replace the phrase "and the substantive facts of Counts VI, VIII, XII, and XIII" with an explicit enumeration of the numbered paragraphs relied on. If that enumeration proves long, the count is relying on too much and should be narrowed rather than expanded.

Counsel note. The extract available to the preparers of this schedule records this clause but not which count contains it. Identify it in the operative pleading and check every other incorporation clause at the same time. Of the six sampled, this is the only one that departs from paragraph 2's representation, but six is not sixteen.

Correction 4 — the FBPA count requires the pre-suit demand or its exception

The defect. Count XI pleads the Georgia Fair Business Practices Act. O.C.G.A. § 10-1-399(b) provides: "At least 30 days prior to the filing of any such action, a written demand for relief, identifying the claimant and reasonably describing the unfair or deceptive act or practice relied upon and the injury suffered, shall be delivered to any prospective respondent."

Nothing in the record available to the preparers shows such a demand was delivered to any Defendant.

The correction. As to each Defendant, either plead delivery of the demand with its date, or plead the statutory exception, which applies where "the prospective respondent does not maintain a place of business or does not keep assets within the state." That exception may fit MEB Loan Trust VIII and the FREED trust. It is unlikely to fit NewRez LLC d/b/a Shellpoint Mortgage Servicing, Specialized Loan Servicing, LLC, or McCalla Raymer Leibert Pierce, LLP. If neither can be pleaded truthfully as to a given Defendant, the count should be dropped as to that Defendant rather than carried.

Correction 5 — the FDCPA count requires relation back to be pleaded

The defect. Count VII pleads the FDCPA. 15 U.S.C. § 1692k(d) requires that an action be brought "within one year from the date on which the violation occurs." That is an occurrence rule, not a discovery rule: each discrete violation starts its own clock.

The conduct alleged runs from 2022 to 2026. Much of it is outside one year of any plausible filing date.

The correction. Plead expressly that this pleading relates back to the original complaint under Rule 15(c)(1)(B), which provides for relation back where "the amendment asserts a claim or defense that arose out of the conduct, transaction, or occurrence set out — or attempted to be set out — in the original

pleading," and identify the original filing date in the Superior Court of Forsyth County. Then confine the count's alleged violations to those occurring within one year before that date, or plead why an earlier violation remains actionable.

Counsel note. The filing date of the original state-court complaint in case 26CV-0387-1 is not established anywhere in the record available here. It is the date the entire limitations analysis turns on.

V. WHAT THE PROPOSED PLEADING DOES NOT DO

It does not plead that any chain of title terminates before reaching Fannie Mae REMIC Trust 2024-91. That entity appears in materials prepared for this matter and has no connection to this loan; it is a defendant in a different case.

It does not plead a "show me the note" theory, and it does not attack any assignment as void.

It does not rely on *Racette v. Bank of America, N.A.*, 318 Ga. App. 171 (2012) for any proposition about assignments. That opinion does not address assignments.

It does not plead a recorded-chain defect under O.C.G.A. § 44-14-162(b). *Haynes* holds at 1252 that the subsection "provides only that '[t]he security instrument ... shall be *filed* prior to the time of sale,'" and "says nothing of when (or even if) the deed must actually be recorded."

It does not assert that any authority is good law on the strength of a citator check, because no commercial citator was available to the preparers.

It does not characterise the effect of Standing Order 18-01 beyond its text, which has now been read: this case falls within paragraphs 1, 2 and 3 of that order independently, the referral to the Magistrate Judge is automatic by the Clerk, and "[t]he District Judge may, at any time, withdraw the reference."

VI. CONCLUSION

For these reasons Plaintiffs respectfully request leave to file a Corrected Amended Complaint conforming to the schedule in Section IV.

ENCLOSURES TO BE ASSEMBLED BEFORE FILING

- Exhibit A — the Corrected Amended Complaint, prepared by applying Section IV
to the operative pleading
- Exhibit B — a redline against the operative pleading, once that pleading has been identified from the docket
- Exhibit C — proposed order

COUNSEL CHECKLIST BEFORE THIS LEAVES THE BUILDING

From the docket: what was filed and when; the current caption and judge initials; every counsel of record and their service method; whether a motion to dismiss or a motion to stay discovery is pending, and its response date; the filing date of the original state-court complaint.

In the corrected pleading: that Corrections 1 through 5 are applied; that no count incorporates all preceding paragraphs or the substantive facts of another count; that paragraph numbering is continuous; that every factual allegation has a source, a named witness, or is expressly pleaded on information and belief; that Fannie Mae and REMIC Trust 2024-91 appear nowhere; that every exhibit referenced is attached.

In this motion: whether Rule 6(b)(1)(B) must be addressed; the current text of LR 5.1, including the announced proposed amendment to LR 5.1(D) on margins; the page limits in the local rules and in any standing order of Judge Story or Magistrate Judge Howard; and that the certificate of service names the right people.

Respectfully submitted,

This ____day of ____, 2026.

/s/ _____

Christopher J. Carrelha

Kelsey D. Carrelha

Plaintiffs, pro se

[address, telephone and email to be completed by the filer]

CERTIFICATE OF SERVICE

I certify that on the date below I served a copy of the foregoing upon all counsel of record by filing it with the Clerk of Court using the CM/ECF system, which will automatically send electronic notification to all attorneys of record, and, as to any party not served by CM/ECF, by first class United States mail, postage prepaid, addressed as follows.

[Counsel for Defendants — name, firm and address to be completed from the docket before filing]

[Counsel for any additional defendant — to be completed from the docket before filing]

/s/ _____

Christopher J. Carrelha

Kelsey D. Carrelha

Plaintiffs, pro se

[address, telephone and email to be completed by the filer]